

March 21, 2026

Dear Members of the Redevelopment Board:

Since last fall, many residents have turned out at hearings to express their frustration at the gap between what our provisions on MBTA-C Act overlay bonuses say versus what various individuals on the Board interpret or recall it as saying. The degree to which the Board itself has disagreed on those interpretations has been alarming.

Town Meeting members are the ones to vote on the language of the law, so we must simply look at the clear language of the law that was presented for a vote. The language reveals clear minimum thresholds.

Two members of the Board agreed that the words "at least 22.5% of all units" sets a firm threshold for Affordability in the bonus provisions of the MBTA act law. They stated compelling reasons for that reading. They noted that the words "at least" and "to exceed" (our IZ rules) bolster the idea that no rounding (down) is to be allowed since "at least" sets a firm threshold.

Three members thought rounding down would be fine, but they did not point to anything in the law to show why other than .. Section G. As we know, it was necessary for section G to refer back to our base MBTA act zoning regulations because we *asked* the state to allow the **base component of the MBTA Act overlay zoning** (first 4 floors, with no bonus) to match our IZ rules. Section G does not, and was never intended to, refer to bonuses, for which we can see that new minimum threshold language was crafted (hence, the "at least"). Before Section G gets deleted in order to clear up "clutter" in the Bylaw, this context must be made clear and the clarification sought by Article 55 passed.

Please do not water down Affordability bonuses from the 22.5% threshold in the law. That would be the result if we were to allow new math to prevail, rather than the clear language and math contained in the law presented and voted upon at Special Town Meeting, 2023. Thresholds are particularly important for rules tacked on to by-right zoning. Residents have made it clear that they want no watering down of any of our agreed-upon laws as the first projects seeking bonuses appear before the Board.

Thank you,
Joanne Cullinane TMM 21